

BEFORE THE
FEDERAL MARITIME
COMMISSION

DOCKET NO. 22-18

COLOR BRANDS, LLC.

COMPLAINANT,

v.

AAF LOGISTICS, INC.

RESPONDENT.

MOTION FOR DEFAULT AND ENTRY OF DEFAULT JUDGMENT

NOW COMES, Complainant, Color Brand's LLC., respectfully moves the Federal Maritime Commission ("Commission") to enter default judgment against AAF Logistics, Inc. ("Respondent" or "AAF") pursuant to 49 C.F.R. § 502.65 for its failure to Answer or otherwise respond to the complaint, despite passage of the statutory time to respond, withdrawal of its prior counsel and AAF's non-response to the Commission's Order to Show Cause reentry of default judgment. In support, Color Brands respectfully states as follows:

1. On August 30, 2022, Color Brands, LLC. ("Complainant" or "Color Brands"), filed its Verified Complaint against AAF Logistics, Inc. ("Respondent" or "AAF") alleging violations of the Shipping Act of 1984, 46 U.S.C. § 41102(a)(c), 46 U.S.C. § 41104(a)(4)(e) and 46 U.S.C. § 41104(a)(14) on the matter of paid cargo insurance premiums for which no insurance was secured and unresolved cargo loss and damage claims under AAF bills of lading.

2. On August 30, 2022, the Commission issued a Served Notice of Filing of Complaint advising AAF that Color Brands had filed a complaint against AAF.
3. On August 30, 2022, the Commission issued a letter to Color Brands advising that the complaint was served by mail to Respondent.
4. On September 26, 2022, AAF's attorneys Henry P. Gonzalez and Peter Herrick, filed their Notice of Appearance in this proceeding as counsel for Respondent, and a Motion for Extension of Time to File an Answer.
5. On September 27, 2022, the Commission served its Order Granting AAF's Motion for Extension of Time to File its Answer. The Commission ordered that AAF file its answer by October 17, 2022.
6. On October 17, 2022, counsel for Respondent filed a Motion to Withdraw as Counsel.
7. On October 18, 2022, the Commission granted the Motion of Mr. Gonzalez and Mr. Herrick to Withdraw as Counsel for AAF. The Commission noted that AAF was in default but granted AAF until November 18, 2022, to answer the Complaint. Further, the Commission issued an Order to Show Cause why default judgment should not be entered against Respondent in the event it did not file an answer on or before November 18, 2022. AAF was provided further notice that a default concedes the truth to well-pled factual allegations and that default judgment may include reparations of up to \$322,624.17, plus attorney's fees.
8. As of the time of filing, AAF has not responded to the Commission's Order and has not filed an Answer to Color Brand's Complaint.
9. AAF waives its attorney's fees incurred up to the time of entry of default judgment in the principal amount of \$322,624.17 so as to liquidate Complainant's claim and allow judgment to be entered at this time.

WHEREFORE, Color Brands prays that the Commission 1) enter a judgment of default against AAF in the principal amount of \$322,624.17 and 2) find that the allegations in Color Brand's Complaint are confessed by Respondent.

Date: November 28, 2022

Respectfully Submitted,

A handwritten signature in black ink, appearing to read 'DL', is positioned above a horizontal line.

Daniel Lutz
COO, Color Brands, LLC.
406 N. Sangamon Street, Suite 300
Chicago, IL 60642
Phone: (248) 880-6621
Email: Daniel@colorbrands.us

Verification

I declare (or certify, verify, or state) under penalty of perjury that the foregoing is true and correct.

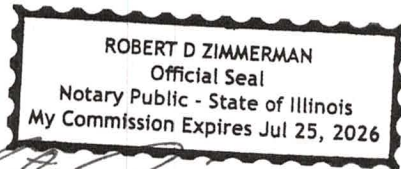

Daniel Lutz

State of Illinois

County of Cook

Subscribed and sworn before me on this 11 day of November 2022 by






Notary Public